

PRESIDENT'S MESSAGE



Recent Freedom of Expression Issue

By Kevin Kane – December 1, 2019

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Dear Members,

It has been in the news lately that Dougal MacDonald, an assistant lecturer at the U. of A, made remarks on his private Facebook page, which have come under scrutiny. Dougal MacDonald's remarks were his own and not linked to his U. of A. professional activities. The University's Deputy Provost Wendy Rodgers said in an email statement:

"As a private citizen, Mr. MacDonald has the right to express his opinion, and others have the right to critique or debate that opinion," she said. "It is our understanding that he has not expressed these views in the context of his employment relationship with the university."

Indeed, as a private citizen Dougal MacDonald has freedom of expression, which is protected in the Charter of Rights and Freedoms. Freedom of expression also protects the right, as indicated above, to critique or debate that opinion by a private citizen such as Dougal MacDonald, which the University Student Union has done. However, the Student Union has also called for Dougal MacDonald to take back his statements or resign. The call by the SU for him to take back his statements can be seen as pressure for retroactive self-censorship. This is inconsistent with principles of freedom of expression. The SU-proposed

alternative to retraction of his statements, resignation, is not appropriate either, as it is regarding statements made by Dougal MacDonald in the capacity of a private citizen.

Kevin Kane